

1.

CASE #	CASE NAME	HEARING NAME
CVRI2501734	HOWARD-CO vs CITY OF JURUPA VALLEY	MOTION FOR AN ORDER THAT PLAINTIFF FILE AN UNDERTAKING TO SECURE AN AWARD OF COSTS & FEES

Tentative Ruling:

Factual/Procedural Context

Complaint (FAC) & Allegations. This is a personal injury litigation initiated by Plaintiff Alyssa Howard-Co on April 1, 2025 against the City of Jurupa Valley (“City”), County of Riverside (“County”), Corona-Norco Family YMCA (“CNYMCA”) and YMCA Youth Center at Jurupa Valley (“YMCAJV”). Plaintiff alleges that on April 11, 2024, she was seriously injured while outside of her kids’ school in Jurupa Valley (“Premises”). Defendants negligently owned, controlled, and operated the Premises, allowed such dangerous condition of public property to exist, and caused Plaintiff’s damages. The Complaint asserts causes of action for (1) General Negligence and (2) Premises Liability.

On November 5, 2025, CNYMCA filed a Cross-Complaint against Roes 1-50 for (1) Equitable Indemnity, (2) Declaratory Relief, (3) Contribution, (4) Express Indemnity. On March 16, 2026, CNYMCA amended the Cross Complaint designating Roe 1 as Green R. Turf, Inc. (“Green”).

On June 5, 2026, Green filed a Cross-Complaint against CNYMCA and New Generation Turf, Inc. for (1) Declaratory Relief, (2) Apportionment, and (3) Implied Indemnity.

Trial is not currently set.

Motion. CNYMCA (“Defendant”) now moves in accordance for an order requiring Plaintiff to post an undertaking in the amount of \$54,000 because Plaintiff is an Arizona resident and Defendant has a reasonable possibility of prevailing at trial. Defendant argues it has a complete defense because Plaintiff signed a Release Waiver for any claims for injuries as a result of general negligence when she enrolled in the YMCA childcare development program. (Bonkowski Decl., Exh. C, “Release”).

In opposition, Plaintiff argues Defendant has made no evidentiary showing of a reasonable probability of prevailing, instead relying on conclusory allegations. Plaintiff contends Defendant fails to provide the basis for the \$54,000 amount requested.

In reply, Defendant points out Plaintiff does not refute the fact that she resides outside of California and does not question the authenticity or foundation of the Release.

Analysis

I. Standard

Code of Civil Procedure section 1030 allows a defendant to, at any time, apply to the court by noticed motion for an order requiring the plaintiff to file an undertaking if the plaintiff resides out of the state. The undertaking would secure an award of costs and attorney's fees that might be awarded in the action. (Code Civ. Proc., § 1030, subd. (a); see also *Shannon v. Sims Service Center, Inc.* (1985) 164 Cal.App.3d 907, 914 [constitutionally upheld].) The motion is made on the grounds that the plaintiff resides out of the state and that there is a reasonable possibility that the moving defendant will obtain judgment. (Code Civ. Proc., § 1030, subd. (b).) The statute serves a legitimate purpose of securing costs in the face of the difficulty of trying to enforce a costs judgment against a nonresident. (*Shannon, supra*, 164 Cal.App.3d at 913.) To obtain an order requiring such a bond, the defendant must show by affidavit or declaration a "reasonable possibility" that it will prevail at trial, and a detailed estimate of the costs it is likely to incur. (Code Civ. Proc., § 1030, subd. (b).)

II. Merits

a. Prong 1 – Does Plaintiff reside out of state?

Plaintiff fails to address this point in opposition. The failure to respond to a point is "equivalent to a concession." (*Sehulster Tunnels/Pre-Con v. Traylor Brothers, Inc.* (2003) 111 Cal.App.4th 1328, 1345, fn. 16.) Thus, Defendant's assertion that Plaintiff resides in Arizona is undisputed.

b. Prong 2 – Is there a reasonable possibility that the moving defendant will obtain judgment?

The moving defendant is not required to show that there is no possibility that plaintiff can prevail at trial, only that it is reasonably possible that it will win. (*Baltayan v. Estate of Getemyan* (2001) 90 Cal.App.4th 1427, 1432.) In *Baltayan*, the defendant collided into the plaintiff's car. (*Id.* at 1430.) After the collision, the plaintiff told the police he pulled over to the curb, saw a no parking sign, pulled out and was suddenly hit by the defendant. (*Id.* at 1430-1431.) The arbitrator found the accident was caused by plaintiff's unsafe turning maneuver into the path of defendant's car. (*Id.* at 1431.) Though the plaintiff pointed out he was rear-ended by defendant, the *Baltayani* court found defendant satisfied their burden demonstrating it was reasonably possible defendant would win based on the arbitrator's ruling for the defendant.

Here, Plaintiff's Complaint contains two causes action that are premised on the same factual allegations: negligence and premises liability.

The elements of a cause of action for negligence are: (1) defendant's legal duty of care toward plaintiff, (2) defendant's breach of duty (the negligent act or omission), (3) injury to plaintiff as a result of the breach (proximate or legal cause), and (4) damage to plaintiff. (*County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 318.)

Premises liability is a form of negligence wherein the owner of the premises is under a duty to exercise reasonable care in the management of such premises to avoid exposing persons to an unreasonable risk of harm. (Civ. Code § 1714, subd. (a); *Brooks*

v. Eugene Burger Management Corp. (1989) 215 Cal.App.3d 1611, 1619.) To establish premises liability, a plaintiff must prove (a) the defendant was the owner, occupier, or lessor of the premises, (b) the defendant was negligent in the use, maintenance, or management of the premises, and (c) that the negligence was the cause of injury, damage, loss, or harm to the plaintiff. (*Brooks, supra*, 215 Cal.App.3d at 1619.)

To prove an unsafe condition of property, plaintiff must prove: (1) a condition on the premises created an unreasonable risk of harm; (2) defendant knew, or in the exercise of reasonable care, should have known about it; and (3) defendant failed to repair the condition, protect against harm from the condition, or give adequate warning of the condition. (See *Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1206.)

Duty / Release / Waiver

A release is the relinquishment, concession, or giving up of a right, claim, or privilege by the person in whom it exists or to whom it accrues to the person against whom it might have been demanded or enforced. (*Commercial Ins. Co. of Newark, N.J. v. Copeland* (1967) 248 Cal.App.2d 561, 565 (“*Copeland*”).) A release may negate the duty element of a negligence action. (*Benedek v. PLC Santa Monica* (2004) 104 Cal.App.4th 1351, 1356.) A waiver is the intentional relinquishment of a known right after knowledge of the facts. (*Copeland, supra*, 248 Cal.App.2d at 565.) The legal effect of a release is also the relinquishment of rights such that it is a waiver. (*Ibid.*) In summary judgment, the defendant bears the burden of establishing the validity of a release. (*Jimenez v. 24 Hour Fitness USA, Inc.* (2015) 237 Cal.App.4th 546, 554.)

In the present case, Defendant presents proof that Plaintiff signed a Release. Graciela Rodriguez (“Rodriguez”) testified that as the Enrollment Specialist at Corona-Norco Family YMCA, she was present in-person on March 8, 2024 when Plaintiff signed the enrollment documents, including the Release. (Rodriguez Decl., ¶¶2-5, Exh. A, “Release”.) A copy of the Release is attached to attorney Stephen A. Bonkowski’s declaration.

Rodriguez’s declaration lays sufficient foundation and authentication of the Release. “The custodian of a document need not have been present or employed when the document was created or signed to authenticate a document in a company’s files.” (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 758.) Any qualified witness knowledgeable about documents may lay foundation for business records. (See *Estate of O’Connor* (2017) 16 Cal.App.5th 159, 170.) There is “no strict requirement as to how a party authenticates a writing.” (*Ramos v. Westlake Services LLC* (2015) 242 Cal.App.4th 674, 684; Evid. Code, §1400 [authentication of a writing establishes the writing is what it purports to be].) Plaintiff makes no arguments attacking foundation or authentication by Rodriguez.

The Release states:

1. THE UNDERSIGNED (sic) ON HIS OR HER BEHALF AND BEHALF OF SUCH CHILDREN, HEREBY RELEASES, WAIVES, DISCHARGES AND COVENANTS **NOT TO SUE** the YMCA, ...for any loss or damage, and any claim or demands therefore on account of injury to the person...of the undersigned...in, upon, or about the premises...
2. THE UNSIGNED HEREBY AGREES TO INDEMNIFY AND SAVE AND HOLD HARMLESS the releases and each of them from any loss, liability, damage, or cost they may, incur due to the presence of the undersigned...in, upon, or about the YMCA premises...whether caused by the negligence of the releases or otherwise.
3. THE **UNDERSIGNED HEREBY ASSUMES ALL RESPONSIBILITY FOR AND RISK OF BODILY INJURY**,...to the undersigned or such children due to negligence of releasees or otherwise while in, about or upon the premises of the YMCA or participating in any program affiliated with the YMCA.

(Release, pg. 1, emphasis added.)

Contract principles apply when interpreting a release and determination of such is a legal question. (*Ibid.*) To be effective, such a release must be clear, unambiguous, and explicit. (*Id.*) Like any agreement, a waiver or release agreement is subject to ordinary contract defenses. (*Jimenez v. 24 Hour Fitness USA, Inc.* (2015) 237 Cal.App.4th 546, 562-564 [triable issue existed on fraud defense because defendant aware that customer who signed English-language release did not understand English].) So long as the express agreement to assume a risk does not violate public policy, it will be upheld and will constitute a complete bar to a negligence cause of action. (*Madison v. Superior Court* (1988) 203 Cal.App.3d 589[.]) “When parties intend for an express assumption of risk provision to exceed the inherent risk of the endeavor for which the release is signed, it is especially important for parties to clearly, explicitly and comprehensibly state the inclusion of noninherent risks.” (*Zipusch v. LA Workout, Inc.* (2007) 155 Cal.App.4th 1281, 1289.)

The Release is clear, unambiguous and explicit that the undersigned, Plaintiff, assumes all responsibility for bodily injury due to negligence while upon the YMCA premises. (Release, pg. 1.) Plaintiff’s incident thus triggers the application of the Release clause.

Accordingly, Defendant has established the possibility of prevailing at trial based upon the Release. Defendant has met its threshold showing of establishing the reasonable possibility of prevailing at trial under Code of Civil Procedure section 1030, subdivision (b).

The Court **GRANTS** Defendant’s motion for an order for undertaking for costs.

c. Costs

A request under Code of Civil Procedure section 1030 “shall be accompanied by an affidavit...shall set forth the nature and amount of costs and attorney’s fees the

defendant has incurred and expects to incur by the conclusion of the action or special proceedings.” (Code Civ. Proc., § 1030, subd. (b).)

Contrary to Plaintiff’s claims, attorney Bonkowski filed a declaration testifying Defendant has incurred \$11,231 in potentially recoverable costs to date: professional services fees of \$3,409.55 and allowable costs under Code of Civil Procedure section 1033.5, subdivision (a), to wit: filing fees (including MSJ), service, court report and deposition fees including video, witness fees, fees for court reporter at trial, jury fees, costs of models, photocopies, and expert fees and costs. (Bonkowski Decl., ¶6.) Bonkowski testifies the fees and costs total at least \$54,000 based on his best estimate. (*Id.* at ¶7.) This is sufficient.

d. Waiver – Code of Civil Procedure section 995.240

The only issue that remains is whether the bond should be waived or reduced based upon Plaintiff’s indigency or hardship.

The court may waive or significantly reduce the amount of an undertaking if the plaintiff establishes indigency because “‘access trumps comfort’.” (*Alshafie v. Lallande* (2009) 171 Cal.App.4th 421, 429.) This is so even if the defendant establishes grounds for an undertaking. (*Id.*) The trial court has the discretion to waive a provision for a bond in an action or proceeding and make such orders as may be appropriate as if the bond were given, if the court determines that the principal is unable to give the bond because: (1) the principal is indigent, and (2) unable to obtain sufficient sureties, whether personal or admitted surety insurers. (Code Civ. Proc., § 995.240.)

“[A] party formally seeking in forma pauperis status to be relieved of paying specified court fees and costs, which we believe could include a section 1030 undertaking as an additional court fee or cost...must complete a mandatory Judicial Council form (currently designated form FW-001) and provide the specified financial information¹. [Citations.] An applicant who is not receiving government benefits from certain public assistance and supplemental income programs or whose monthly income exceeds 125 percent of the current monthly federal poverty guidelines may nevertheless qualify to proceed in forma pauperis if his or her income is not sufficient to pay for court fees and costs as well as the common necessities of life for the applicant and the applicant’s family.” (*Alshafie, supra*, 174 Cal.App.4th at 434.)

“A plaintiff who has been granted in forma pauperis status has the right to a waiver of the undertaking. However, a plaintiff is not obligated to obtain in forma pauperis status to be entitled to a waiver of the section 1030 bond requirement. [Citations.] Under these circumstances, when the plaintiff has, for whatever reason, elected not to seek in forma pauperis status, there is no rigid standard for the requisite showing of indigency; and, as discussed, it ultimately remains within the court’s discretion to determine whether to grant a waiver. [Citations.] Certainly, however, a plaintiff seeking such a waiver would be well

¹ Judicial Council Form FW-011, “Request to Waive Court Fees,” requires an applicant to list gross monthly income, household income, all financial accounts, vehicles, personal property (jewelry, furniture, furs, stocks, bonds, etc.), and monthly deductions and expenses, including rent or house payments, food and household supplies, utilities, transportation expenses, etc.

advised to provide the detailed financial information requested on the mandatory Judicial Council form for obtaining in forma pauperis status.” (*Alshafie, supra*, 171 Cal.App.4th at 434.)

If the trial court has already granted a plaintiff leave to proceed in forma pauperis, the trial court acts arbitrarily and capriciously if it refuses to vacate or reduce the amount of the undertaking. (*Baltayan, supra*, 90 Cal.App.4th at 1435.) And even if a fee waiver has not been obtained, indigency depends on the litigant’s individual situation. (*Alshafie, supra*, 171 Cal.App.4th at 435, 435.) Out-of-state plaintiffs who earn a low income that may be entitled to relief from requirement of posting of undertaking; not only must courts exempt poor people entirely, but they may have to reduce the security bond required for middle-income litigants as well. (*Id.* at 46.)

Here, Plaintiff has failed to submit a declaration and Judicial Council Form outlining her hardship if she were forced to post an undertaking as requested. The Court **CONTINUES** the matter to afford Plaintiff the opportunity to demonstrate her financial inability to post an undertaking in the amount of \$54,000 and to explain the significant hardship she will face in the event such an undertaking is ordered. The continued hearing is set for September 17, 2026 at 8:30 am in Dept. 3 and Plaintiff is to file further papers regarding her ability to pay an undertaking which is to be filed no later than September 8, 2026.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2601385	WINTERS vs DOE DEFENDANT	MOTION TO BE RELIEVED AS COUNSEL FOR ALEXANDER WINTERS

Tentative Ruling: The motion to be relieved is granted. The order shall be effective upon filing a proof of service of the final order.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2602139	LOPEZ LOPEZ vs JAGUAR LAND ROVER NORTH AMERICA, LLC	DEMURRER ON COMPLAINT

Tentative Ruling:

A party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (CCP § 430.10(e).) A demurrer tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

When considering demurrers, courts accept all well-pleaded facts as true. (*Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.” (*SKF Farms v. Sup. Ct.* (1984) 153 Cal.App.3d 902, 905.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous